

MERCHANT SERVICE AGREEMENT

BETWEEN

PAYAZA AFRICA LIMITED
(PAYAZA)

AND

**NATIONAL WATER, SANITATION AND HYGIENE
COMMISSION**

MERCHANT SERVICE AGREEMENT

THIS MERCHANT SERVICE AGREEMENT ("**Agreement**") is made this **19TH** day of February 2026 ("**Effective Date**")

BETWEEN

PAYAZA AFRICA LIMITED, a company duly incorporated under the Laws of Liberia with its registered address at **9th & 10th Street, Sinkor, Monrovia, Liberia** (hereinafter referred to as "**Payaza**" which expression shall where the context so admits include its successors-in-title and assigns) of the one part.

NATIONAL WATER, SANITATION AND HYGIENE COMMISSION, a company duly incorporated under the Laws of the Republic of Liberia with its registered address at 18th Street, Sinkor, Monrovia, Liberia (hereinafter referred to as "**Merchant**" which expression shall where the context so admits include its successors-in-title and assigns) of the other part.

Payaza and **Merchant** are herein referred to collectively as "**Parties**" and individually as "**Party**"

WHEREAS:

- A. Payaza has developed and owns a digital service that authorizes payments for Merchants and is in collaboration with its partner financial institutions ("**FI Partners**") to provide payment processing services to Merchants.
- B. The Merchant is desirous of partnering with Payaza to use its Payment Gateway (as defined below) to process payment from its customers and parties have set out the terms of their relationship under this Agreement.
- C. The Merchant is a government agency that helps the people of Liberia with improved and favorable water, sanitation and hygiene services(WASH) to guarantee the healthiness and livelihood of the people of Liberia.

AGREED TERMS

1. DEFINITIONS

In this Agreement, in the event of the following definitions apply:



payaza.africa



hello@payaza.africa



sales@payaza.africa

“API” means Application Program Interface belonging to Payaza for the purpose of providing the Services;

“Applicable Law(s)” includes all relevant Liberian laws and regulations including those from the Bank of Liberia as well as any court decisions with the force of law in the Territory;

“Business Day” means any day other than Saturday, Sunday, or any other day on which banking institutions in the Territory are authorized by law or executive action to close;

“Confidential Information” means all non-public information disclosed by one party to the other in connection with this Agreement and that Party, including financials, know-how, intellectual property, trade secrets, customer information, sales statistics, market strategies, and other commercial information. This does not include information that is already publicly known, previously known to the receiving party, or required to be disclosed by law or regulatory authority.

“Customers” means patrons of the Merchant in relation to a payment transaction processed using the Services;

“Disclosing Party” means any one of the Parties under this Agreement who discloses Confidential Information to the other Party to this Agreement;

“Fines” means any fines, costs, expenses, or liabilities imposed by financial institutions or regulatory authority on Merchant or Payaza, related to this Agreement or the Services.

“Intellectual Property Rights” means all registered and unregistered rights in patents, inventions, copyrights, trademarks, designs, software, databases, trade secrets, and all applications, renewals, and extensions thereof, worldwide.

“Merchant” means an end user customer that uses the Services in the conduct of its business of selling goods or providing services to the Public;

“Payment Gateway” means the infrastructure and e-commerce service of Payaza that authorizes the use of the Services for Merchants;

“Payaza Terms and Conditions” means the terms and conditions on the use of the Payment Gateway on <https://payaza.africa/terms-conditions>

“Receiving Party” means any person receiving Confidential Information from a Party under this Agreement;

“Regulatory Authority” means any applicable regulator, government agency or other public body having supervisory or regulatory authority over Payaza or the Merchant in the Territory;

“Services” means usage of the Payment Gateway by the Merchant for collections and other transaction processing services as specifically set out in Annexure 1 of this Agreement;

“Territory” means the means the Republic of Liberia or any other country or countries in which the Services are provided to the Merchant as specifically set out in Annexure 1; and

“User Acceptance Test” (UAT) means the last phase of testing of the Payment Gateway integration to ensure functionality according to specification.

2. TERM

- 2.1 This Agreement shall commence on the **“Effective Date”** and shall continue for a period of twelve (12) months (**“Initial Term”**) unless any Party terminates the Agreement in accordance with the terms of this Agreement.
- 2.2 Upon expiry of the initial term, this Agreement shall automatically renew for successive one (1) year periods until terminated in accordance with this Agreement.

3. PAYAZA'S OBLIGATIONS

Payaza hereby agrees to:

- 3.1 facilitate the processing of payments for the Merchant by providing access to its Payment Gateway;
- 3.2 work with its FI Partners to ensure that settlements of all monies collected by the Merchant is handled in a timely manner in accordance with Applicable Law and Annexure 1;
- 3.3 grant the Merchant a limited, non-exclusive, and non-transferable license to use its API for the Services contemplated under this Agreement;
- 3.4 offer technical support to the Merchant as required and ensure compliance with Applicable Laws.

4. THE MERCHANT'S OBLIGATIONS

4.1 The Merchant hereby agrees:

- 4.1.1 to offer the Payment Gateway as a preferred method to route supported transactions;
- 4.1.2 respond to fraud or transaction inquiries within one (1) business day and provide adequate proof of service delivery where necessary.
- 4.1.3 ensure that its website clearly displays essential policies, including refund, cancellation, and privacy policies.
- 4.1.4 comply with all applicable regulatory and compliance requirements, including all Know Your Customer (KYC) regulations and anti-money laundering (AML) obligations.
- 4.1.5 Notify Payaza immediately of any security breaches, fraud, or suspicious activities and outline corrective actions taken.
- 4.1.6 comply with any regulatory approvals, directives, or modifications required by the Regulatory Authority.
- 4.1.7 to notify Payaza of any change in the Merchant's registered office address and/or line of business prior to such change;
- 4.1.8 ensure that the provided APIs will be used across all of its applicable digital Merchant assets in the prescribed manner;
- 4.1.9 following successful implementation of the UAT, sign off a project Go-Live document provided by Payaza, for this purpose, before exposing the Services to its Customers;

4.2 Where payout services are applicable, the Merchant agrees to:

- 4.2.1 prefund a nominated account with Payaza for the processing of transaction requests to beneficiaries and acknowledge Payaza's right to decline any transaction request where the amount in the nominated account is insufficient.
- 4.2.2 authorize Payaza to debit the Merchant's prefunded account for each transfer request to the beneficiary's account, deducting the total transaction amount as well as any applicable service fees.

5. SET OFF

- 5.1 Payaza may set off any debts or liabilities due from the Merchant to Payaza under this Agreement against any debts or liabilities owed by Payaza to the Merchant, regardless of the place of payment or currency of either obligation. If the obligations are in different currencies, Payaza may convert either obligation at a market rate of exchange in its usual course of business for the purpose of the set-off.
- 5.2 Payaza is entitled to defer any settlement or any other sum due to the Merchant to the extent that Payaza considers necessary or appropriate to protect their ability to recover the Fees and/or the sums set out in Annexure 1 below or any other liability (actual or anticipated) of the Merchant in connection with this Agreement.
- 5.3 If Payaza has reasonable suspicion that a transaction may be fraudulent or involve other criminal activity, Payaza may suspend the processing of that transaction and any connected transaction or withhold settlement of that transaction until the satisfactory completion of any investigation. The Merchant shall not be entitled to any interest or other compensation whatsoever in respect of suspension or delay in receiving payment.
- 5.4 The exercise by Payaza of any of its rights under this clause shall be without prejudice to any other rights or remedies (including but not limited to set-off) to which Payaza is otherwise entitled (by operation of law, contract, or otherwise).

6. FEES & CHARGES

- 6.1 The Merchant shall pay transaction fees as stipulated in Annexure 1 of this Agreement.
- 6.2 Payaza reserves the right to adjust these fees with prior notice to the Merchant.
- 6.3 Payaza may also withhold or deduct amounts necessary to cover any Fines, or other liabilities of the Merchant incurred under this Agreement.
- 6.4 Payaza is entitled to recover and withhold any amount requested by a customer and promptly communicated by Payaza to the Merchant, provided that, before any deduction, the Merchant shall have three (3) Business Days to investigate and determine the validity of such request ("**Refund Investigation**"). The deduction and withholding of such amounts shall be subject to the outcome of the Refund

Investigation and, Payaza entitlement to recover and withhold within this Clause 6.4 shall occur only if the Merchant confirms that value was not duly provided to the Merchant's customer ("**Refunds**"). Notwithstanding the foregoing, Payaza reserves the right to comply with a valid court order requiring a refund to the relevant customer, without being bound by the Refund Investigation Outcome. In any case, the Merchant agrees to indemnify, defend, and hold harmless Payaza, its affiliates, officers, directors, employees, and agents from and against any and all claims, demands, actions, losses, damages, costs, and expenses (including reasonable attorney fees) arising out of or related to the result of the Refund Investigation or Payaza's reliance on the outcome of the Refund Investigation.

7. WARRANTIES

The Merchant warrants that:

- 7.1 It will not submit illegal or fraudulent transactions and will conduct due diligence on customers.
- 7.2 It will use the Services in good faith, complying with this Agreement and Applicable Law.
- 7.3 It has not been subject to Criminal convictions (except minor offenses), tax liens Administrative or enforcement proceedings, restraining orders or judgments alleging fraud, obligations that jeopardize its obligations under this Agreement.
- 7.4 The Parties warrant that this Agreement does not breach any laws, regulations, patents, copyrights, or intellectual property rights.
- 7.5 The Parties warrant that they have the required licenses and rights to use third- party software.
- 7.6 Each Party warrants that this Agreement is a legal, valid, and binding obligation.
- 7.7 Payaza warrants that it will use its best endeavors to ensure the Payment Gateway functions optimally, but does not warrant uninterrupted or error-free use
- 7.8 Disclaimer. EXCEPT FOR THE WARRANTIES SPECIFICALLY SET FORTH IN THIS AGREEMENT, EACH PARTY DISCLAIMS ALL WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, ARISING OUT OF OR RELATED TO THIS AGREEMENT, INCLUDING WITHOUT LIMITATION, ANY WARRANTY OF MARKETABILITY, FITNESS FOR A PARTICULAR PURPOSE OR NON- INFRINGEMENT, AND IMPLIED WARRANTIES ARISING FROM

COURSE OF DEALING OR COURSE OF PERFORMANCE, EACH OF WHICH IS HEREBY EXCLUDED BY AGREEMENT OF THE PARTIES.

8. LIABILITY AND INDEMNITY

- 8.1 Each party agrees to indemnify and hold harmless the other party, its affiliates, directors, employees, and agents against any direct damages, losses, expenses, claims, or liabilities arising from its negligent acts or wilful misconduct; violations of Applicable laws or regulations; or third-party claims resulting from a breach of this Agreement.
- 8.2 The Merchant agrees to indemnify and hold Payaza harmless against any losses resulting from fraudulent transactions, breaches of security, or non-compliance with Applicable Laws.
- 8.3 This section will not be construed to limit or exclude any other claims or remedies to which Payaza may be entitled hereunder or in law or equity.
- 8.4 Payaza's liability under this Agreement shall not exceed the total transaction fees accrued in the three months preceding any claim.

9. SECURITY/DEPOSIT

- 9.1. If applicable, Payaza reserves the right to require that the Merchant provides (or procures the provision of security in such form as to be agreed by the Parties to secure the performance of the Merchant's actual, contingent or potential obligations under this Agreement or otherwise in connection with the Services. Such security may take the form of a deposit, a rolling reserve, a guarantee or indemnity.
- 9.2. Payaza may require that any security provided be supplemented or replaced at any time upon due notice to the Merchant.
- 9.3. At the time of termination, Payaza may retain such amount from the security (if any) and settlement payable to the Merchant as may be determined by Payaza to cover refund risk or any potential loss, damages, penalties, cost that may be incurred by Payaza for a period of one hundred and eighty days (180) Business Days. In the event that such retained amount is not sufficient to cover all outstanding amounts of the Merchant post termination, the Merchant shall ensure that it pays Payaza all pending amounts within ten (10) Business Days of

receiving the demand notice and shall at all times keep Payaza indemnified in this respect.

10. TERMINATION

- 10.1 Either Party may terminate this Agreement by providing one month's written notice.
- 10.2 Immediate termination may occur if either Party becomes insolvent, breaches the Agreement (and the breach is not remedied within 20 days of being notified), or is involved in fraudulent activity.
- 10.3 Upon termination, the Merchant's right to use the Payment Gateway shall be revoked, and outstanding obligations shall be settled accordingly.
- 10.4 Any termination of this Agreement (however occasioned) shall not affect any accrued rights or liabilities of any of the Parties.

11. CONFIDENTIALITY

- 11.1 Both Parties agree to maintain the confidentiality of all information exchanged under this Agreement.
- 11.2 Confidential information will not be disclosed to third parties, except as required by law or as permitted by this Agreement. Before disclosing confidential information due to a legal requirement, the disclosing party must: (i) notify the other parties, and (ii) cooperate with their efforts to resist or limit the disclosure.
- 11.3 Upon Termination of this Agreement, all Confidential Information must be returned or securely destroyed.
- 11.4 In the event of any breach of the obligations under this clause, each Party acknowledges that the other Party that in addition to such other remedies as may be available to the other Party, the other Party may obtain injunctive relief.
- 11.5 This Section shall survive any termination or expiration of this Agreement.

12. FORCE MAJEURE

If a Party is prevented from fulfilling its obligations due to unforeseen events beyond its control (e.g., natural disasters, civil disorder), it shall promptly notify the other Party in writing and take all reasonable steps to resume performance. If the incapacity

exceeds 2 months, this Agreement will automatically terminate unless otherwise agreed in writing

13. INTELLECTUAL PROPERTY

This Agreement does not transfer or assign any Intellectual Property Rights between Parties neither shall the Merchant jeopardize Payaza's proprietary rights or acquire any rights in the Payment Gateway or Confidential Information.

14. ASSIGNMENT AND MODIFICATION

- 14.1 The rights benefits or obligations of the Merchant under this Agreement may not be assigned or otherwise transferred in whole or in part without the prior written consent of all Payaza.
- 14.2 This Agreement may not be modified except by an instrument in writing signed by duly authorized representatives of each of the Parties.

15. WAIVER

The rights of the parties under this Agreement or applicable law can only be waived or varied in writing. Failure to exercise, delay, or partial exercise of a right does not waive or vary that right or any other right.

16. DISPUTE RESOLUTION AND GOVERNING LAW

- 16.1 Any disputes arising from or in connection with this Agreement shall first be resolved amicably within thirty (30) days. If the dispute remains unresolved after this period, it shall be referred to and finally resolved by arbitration administered by the Liberia Chamber of Commerce in Monrovia, Liberia, in the English language, by a sole arbitrator appointed in accordance with its arbitration rules. The decision of the arbitrator shall be final and binding on the Parties.
- 16.2 This Agreement shall be governed by the Laws of the Federal Republic of Liberia

17. NOTICES.

All official communications and notices under this Agreement shall be delivered via registered mail to the Parties address stated in the Parties' clause above or electronic mail to the designated contact persons of both Parties.



18. DATA PROTECTION

The Parties agree that any personal data transferred under or in connection with this Agreement shall be subject to the applicable data protection/privacy laws, as amended from time to time, including the Data Protection Act 2012 (Act 843) (hereinafter referred to as “Data Protection Laws”), and shall be obtained, held, stored and processed in accordance with the applicable Data Protection Laws.



IN WITNESS WHEREOF this Agreement has been executed by the duly authorized representative of the Parties in the manner below the day and year first above written.

EXECUTED BY THE WITHIN NAMED: PAYAZA AFRICA LIMITED

AUTHORISED SIGNATORY

NAME:

DESIGNATION:

DATE:

AUTHORISED SIGNATORY

NAME:

DESIGNATION:

DATE:

EXECUTED BY THE WITHIN NAMED MERCHANT: _____

DIRECTOR

NAME

DATE:

DIRECTOR

NAME:

DATE:

ANNEXURE 1

Services & Applicable Fees

Country	Service	Applicable Fees	Currency
Liberia	Collections Card	3.0 %	USD

Settlement Frequency

Settlement type	Timeline
Local Settlement	T+1
International Settlement	T+3

NOTES:

- More channels and new regions are being added. Hence this pricing may be reviewed periodically to reflect changes.
- All fees are exclusive of Value Added Tax or other required taxes in the applicable Territory.

ANNEXURE 2

Post Implementation Support

Introduction

This annexure outlines the service level standards to be provided with regards to post implementation support under this Agreement, unless agreed otherwise in writing by the Parties.

PAYAZA SUPPORT

Payaza maintains 24 hours, 7 days a week support protocol and will respond to service-related incidents and/or requests submitted by Merchants via our support

channels below and within the time frames stated in the standard response time table below.

Email	support@payaza.africa
Online Help Widget	https://payaza.africa

FAULTS SEVERITY CLASSIFICATION

Level	Definition
Level 1 (Critical)	Total outage of a service with widespread impact; no alternative or workaround to deliver the service; Impacting Brand and Revenue
Level 2 (Major)	Service disruption with minimal impact. service performance degradation with an alternative or workaround.
Level 3 Minor	Non-critical; Basic; Maintenance; Routine; Enquiries; Accounts Reconciliation; No direct impact on revenue, brand or service

STANDARD RESPONSE TIME

Priority	Response Time	Incident/Fault Resolution Time	Payaza Support is delivered
Level 1	1 hour	2 - 4 Hours	Remotely
Level 2	1 hour	6 - 12 Hours	Remotely
Level 3	1 hour	24 - 72 Hours	Remotely